ZONING COMPLIANCE LETTER

Calloway Data Campus | Albuquerque, NM

Subject	Zoning verification for Calloway Data Campus
Address	5452 Church Way, Albuquerque, NM 19201
Date	July 21, 2022
Zoning District	20-20

Code Compliance

The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 31 spaces provided versus 31 spaces required by code.

The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements.

Permitted Uses and Parking

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 9 spaces provided versus 9 spaces required by code. The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements.

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Code Compliance

A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. Parking is conforming with 4 spaces provided versus 4 spaces required by code. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality.

The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Parking is conforming with 47 spaces provided versus 47 spaces required by code. A certificate of occupancy was issued on file for the existing improvements.

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Permitted Uses and Parking

Parking is conforming with 11 spaces provided versus 11 spaces required by code. The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty.

Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter.

Code Compliance

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Zoning Classification

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. Parking is conforming with 29 spaces provided versus 29 spaces required by code.

There are no open building code violations or pending special assessments on file with the municipality as of the date of this letter. Setback, height, parking and lot coverage requirements are satisfied based on the information provided by the municipality. Parking is conforming with 7 spaces provided versus 7 spaces required by code. The zoning ordinance permits rebuilding to current density if the improvements are destroyed by casualty. A certificate of occupancy was issued on file for the existing improvements. The property is zoned in accordance with the Albuquerque Unified Development Ordinance and the current use is a legally permitted use.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Calloway Data Campus Owner LLC

By: Patrick Quinn Title: President Date: 07/21/2022

_____

Fairway Compute Inc.

By: David Mitchell Title: President Date: 07/21/2022

Exhibit A - Property

Calloway Data Campus, 5452 Church Way, Albuquerque, NM 19201. Parcel containing approximately 2.27 acres, together with all improvements thereon.

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